

MT204, Module-5

Constitution of India

Election Commission of India (ECI)

- The Election Commission of India (ECI) is a self-governing constitutional body which oversees the election process in India as per the Constitution of India. The ECI was set up in 1950, with the aim of defining and controlling the multi-tiered election process in our country. The Election Commission of India administers the election process from the President of India to the State Legislative Assembly. As per Article of the Indian Constitution, ECI has the supervisory and directional control of the complete process election to Parliament and Legislature of every State and to the office of the President and the Vice-President of India.
- ECI plays a crucial role in organizing elections. The most significant role of the Election Commission of India is to ensure free and fair elections as per the norms and the Model Code of Conduct. It is in charge of monitoring the actions and activities of the political parties and candidates.

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- The election commission has the right to allow symbols to the political parties. It gives recognition to the national parties, state parties and regional parties. It sets limits on poll expenses. The commission prepare electoral rolls and update the voter's list from time to time.

Functions of the Election Commission of India

- ECI is responsible for a free and reasonable election
- It ensures that political parties and candidates adhere to the Model Code of Conduct
- Regulates parties and registers them as per eligibility to contest in elections
- Proposes the limit of campaign expenditure per candidate to all parties and monitors the same.
- It is mandatory for all political parties to submit annual reports to the ECI in order to be able to claim the tax benefit on the contributions.
- Guarantees that all political parties regularly submit audited financial reports.

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- The main duties of the Election Commission are:
- Supervise, control and conduct all elections to Parliament and State Legislatures
- Set general rules for election.
- Prepare electoral rolls
- Determine territorial distribution of constituencies
- Give credit to political parties.
- Allot election symbols to political parties or candidates
- Appoint tribunals for the decision of doubts and disputes arising out of an election to Parliament and State Legislatures.

Chief Election Commissioner(s)

- The **Chief Election Commissioner of India** heads the Election Commission of India, a body constitutionally empowered to conduct free and fair elections to the national and state legislatures and of President and Vice-President. Chief Election Commissioner of India is usually a member of the Indian Civil Service and mostly from the Indian Administrative Service. It is very difficult to remove the authority of the Chief Election Commissioner once appointed by the president, as two-thirds of the Lok Sabha and the Rajya Sabha need to present and vote against him for disorderly conduct or improper actions.
- Until 1989, the commission was a single member body, but later two additional Election Commissioners were added. Thus, the Election Commission currently consists of a Chief Election Commissioner and two Election Commissioners. The decisions of the commission are taken by a majority vote. Rajiv Kumar is the current Chief Election Commissioner of India.

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- The ECI consists of a Chief Election Commissioner and 2 other Election Commissioners. The multi-member ECI works on the power of majority vote.
- The Chief Election Commissioner and the Election Commissioner are appointed by the President of India.
- Each of them holds their offices for a period of 6 years or up to the age of 65 years, whichever comes first.
- They receive the same perks and pay as Supreme Court Judges.
- The only way a Chief Election Commissioner can be removed from office is upon an order of the President supported by the Parliament.
- The Election Commissioner or Regional Commissioner can only be removed from office by the Chief Election Commissioner.

State Election Commission

- The State Election Commission Is An Independent Organization That Conducts Elections To Three Types Of Rural Local Bodies (Rlbs) I.E., Zilla, Taluka And Gram Panchayats, And Four Types Of Urban Local Bodies (Ulbs) I.E., Municipal Corporations, City Municipal Councils, Town Municipal Councils And Town Panchayats.
- As the highest electoral authority, the **state election commission** performs tasks provided by the National Assembly Elections Act and other acts concerning electoral legislation. Within the scope of its tasks, the state election commission in particular:
 - 1. works to ensure the legality of elections and the uniform application of electoral laws relating to the electoral process;
 - 2. appoints members of electoral commissions in constituencies and local electoral commissions;

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- 3. coordinates the work of electoral commissions in constituencies and local electoral commissions, and provides technical instructions concerning the implementation of electoral legislation, and supervises their work;
- 4. prescribes forms for the implementation of electoral laws;
- 5. sets uniform standards for election materials and determines other material conditions for carrying out election tasks;
- 6. publishes the outcome of elections;
- 7. issues confirmations of election;
- 8. ensures ballots are held at diplomatic and consular representative offices of the Republic of Slovenia;
- 9. organizes training for members of other electoral bodies;
- 10. appoints the director of the office of the commission

Welfare of SC/ST/...

- Scheduled castes are those castes/races in the country that suffer from extreme social, educational and economic backwardness arising out of age-old practice of untouchability and certain others on account of lack of infrastructure facilities and geographical isolation, and who need special consideration for safeguarding their interests and for their accelerated socio-economic development. These communities were notified as Scheduled Castes as per provisions contained in the Constitution.
- **Constitutional mechanism for upliftment of SC**
- Ministry of Social Justice and Empowerment
- Initiatives taken for SC development
- ***The 'Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013' (MS Act, 2013)***

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- Other Schemes:
- *Pradhan Mantri Adarsh Gram Yojana (PMAGY)*
- *Babu Jagjivan Ram Chhatrawas Yojna*
- *Babu Jagjivan Ram National Foundation*
- *Dr. Ambedkar National Memorial at 26, Alipur Road, Delhi*
- *Dr. Ambedkar International Centre at Janpath, New Delhi*
- *Dr. Ambedkar Foundation*